

Linked Without Consent: Probabilistic Matching, Policing, and Accountability in UK Public-Sector Data

A Public-Interest Disclosure for Journalists

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What this is, and is not. A transparency record built only from **public, primary sources**, each verified live. **It alleges no illegality.** The processing described is, as far as the record shows, **lawful** — that is precisely the point: the UK lawfully links citizens' records **without their consent**, and in places feeds those links to **police**, with **no published accuracy figures and no stated remedy** for a wrong match. The argument here is democratic, not criminal: *is "lawful" enough?* Claims are status-graded; gaps are marked UNKNOWN and become FOI requests, never guesswork. **Verify the primary sources and take a media-law review before publishing.**

Confidence labels

CONFIRMED (primary/official, read) · **LIKELY** (good secondary, or live page not fully readable here) · **UNKNOWN** (no sourced answer → FOI) · **SPECULATION** (labelled hypothesis; never as fact).

1. The finding, in one paragraph

UK public bodies link individuals' administrative records **at scale and without consent** — lawfully, under "public task" and law-enforcement powers, not consent. The Ministry of Justice's open-source **Splink** tool performs this matching **probabilistically** (it returns *likely* matches, not certain ones). The MoJ's own transparency record shows Splink used not only for research but **operationally**, including a pilot that **sends police a daily list of probation clients' Police National Computer (PNC) numbers** to flag arrests. The accompanying **Data Protection Impact Assessments exist but are not published**; there is **no confirmed human check before each police share**; there is **no published false-match rate**; and there is **no stated remedy** for a person wrongly matched. None of this is unlawful. All of it is, at present, **un-scrutinised**.

2. Why "without consent" is lawful — and why that is the wrong place to stop

Consent is one of six lawful bases in UK GDPR, and for public authorities usually the **wrong** one — the ICO tells them to rely on **public task (Art. 6(1)(e))**, not consent. The system is non-consensual **by design**: - **Justice**: public task + **DPA 2018 Part 3** (law-enforcement processing) — consent is never the basis. - **Research/statistics**: the DPA 2018 Sch. 1 "research" condition (safeguards now at UK GDPR **Art. 84B**). - **NHS**: **s. 251 NHS Act 2006** exists *specifically* to permit confidential patient data use **without consent**; the National Data Opt-Out is the mechanism that proves the baseline is non-consensual. - **ONS Census** → **PDS**: statutory (SRSA 2007); census-statistics use is *excluded even from the opt-out*.

So "they linked it without consent" is not a scandal — it is the lawful design. **The real question is what accompanies non-consensual linkage: an opt-out, clear notice, published safeguards, and — when it touches police — accuracy and redress.** On the justice programmes, several of those are missing.

3. The police data flow — the highest-stakes part (CONFIRMED unless noted)

From the MoJ "**Splink Master Record**" **Algorithmic Transparency Record (published 6 Oct 2025)** (A-S51):

- **Core Person Record** — real-time linkage building one identifier per person across prison, probation and courts (DELIUS, NOMIS, Common Platform, LIBRA, FamilyMan, CaseMan).
- **Probation in Court** — pulling an individual's probation record when they appear in court.
- **Police pilot (North Essex Probation)** — Splink identifies PNC numbers for supervised individuals and **sends them to police every day**.
- **Stated safeguard**: Splink "**does not directly make decisions about individuals**"; a human makes the final decision on candidate matches; **DPIAs were conducted for each use case**.
- **The gap (UNKNOWN)**: the DPIAs are **not published**; it is **not stated** whether a human reviews **each daily police batch** before it is sent; there is **no published false-match rate**; there is **no described remedy** for a wrongful match; the controller and exact basis are not stated (likely **DPA Part 3 — LIKELY**, A-S52/53).

Why this matters: Splink is **probabilistic**. A wrong match in a research file is a bad statistic; a wrong match **feeding police daily** is a real person wrongly flagged. When probabilistic matching meets policing, the *absence* of published accuracy and redress stops being a paperwork point and becomes the core public-safety question. This is lawful — and, on the public record, unaccountable.

4. The wider linkage estate (context, **CONFIRMED** unless noted)

- **Data First** links seven cross-justice datasets incl. **OASys** (1,100+ vars, DV/sexual-offending), plus a **MoJ–DfE** education link. Its own transparency record says it is **research-only** — true *for Data First*; §3 shows Splink used operationally elsewhere. (A-S06, A-S18, A-S19)
- **BOLD** links justice data to **health & social care**, **HMRC Child Benefit and drug-treatment (NDTMS)**; basis Art. 6(1)(e)+9(2)(h); **no stated opt-out**. (A-S22)
- **NHS England Data Linkage Hub** (Splink on PDS) and **ONS Census 2021** → **PDS** (assigns NHS numbers). (A-S13, A-S14)
- Access is de-identified, via the ONS Secure Research Service and SAIL Databank. (A-S06, A-S30/31/33)

5. The legal backdrop just shifted (**CONFIRMED** on primary text)

The **Data (Use and Access) Act 2025** (in force **5 Feb 2026**) replaced UK GDPR Art. 22 with Arts. 22A–22D: for ordinary data the bar on solely-automated significant decisions **relaxed** (special-category data keeps a near-ban); it **loosened the Art. 14 duty to inform** people whose data was obtained indirectly; and it lets the **Secretary of State define, by regulation**, what counts as "meaningful human involvement." (A-S42–A-S50) — i.e. the rules on *automated decisions* and on *being told* were weakened in the same period this linkage expanded. (Recorded as context; no targeting of these programmes is alleged.)

6. The City of London Corporation (parallel case)

- The **City of London Police** (national lead force for fraud) runs the **National Fraud Intelligence Bureau**, which **automatically links** the nation's fraud reports into police intelligence packages. **Action Fraud** → **Report Fraud (4 Dec 2025)**. Its analytics **platform/vendor is undisclosed** (a "Palantir" claim circulated but is **unverified** — recorded UNKNOWN). (B-S01; B-S03 live/unread)
- Governance: a **business-vote franchise** unique in the UK; **City's Cash (~£2.3bn)** sits **outside FOI**; the **Remembrancer** lobbies Parliament from the Commons under-gallery. (B-S02; B-S05/06 live/unread)

7. The questions to put (UNKNOWN → FOI; allege nothing)

1. **Publish the DPIAs** for the Core Person Record and the probation→police PNC pilot.

2. For the PNC pilot: **is each daily share human-checked before it reaches police?** What is the **false-match rate**, and the **remedy** for a wrongly matched individual?
3. State the **lawful basis** (DPA Part 3?) and whether **any opt-out or objection** exists for Data First/BOLD.
4. How are linked individuals **informed** (Art. 14), and what changed under DUAA 2025?
5. **Name the analytics platform** behind the National Fraud Intelligence Bureau.
6. State **why City's Cash is outside FOI** and publish its accounts.

8. What this does NOT say

- It does **not** allege any unlawful processing, surveillance abuse, or corruption.
- It does **not** claim Palantir runs the fraud database — explicitly **UNKNOWN**.
- It does **not** connect Splink or DuckDB to the City of London — searched; **no evidence found**.
- It does **not** say non-consensual linkage is illegal — it is **lawful**; the issue is accountability.

9. Method & limits

All sources fetched and re-checked (0 dead). Statute verified against current legislation.gov.uk text. **Limits:** several official PDFs (Data First privacy statement, MoJ–DfE notice, HMPPS/NPS notices) and pages (reportfraud.police.uk, cityoflondon.gov.uk) resolve but **could not be read in full here** — claims on them are **LIKELY**, not CONFIRMED. Compiled with AI assistance; **a human and a media/data-protection lawyer should review before publication or transmission to officials**.

10. Source register (verified live 2026-06-10)

Part A — linkage / police A-S01 Splink repo · A-S03 Splink IJPDS (ijpds.org/article/view/1794) · A-S06 Data First (ADR UK 2023-24) · A-S13 NHS Data Linkage Hub · A-S14 ONS Census→PDS · A-S18 gov.uk Data First · A-S19 Data First (Splink) ATR · A-S22 BOLD privacy notice · **A-S51 Splink Master Record ATR (gov.uk, 6 Oct 2025)** · A-S52/53 HMPPS/NPS notices (live, unread) · A-S37 DPA 2018 Sch.1 · A-S42 DUAA 2025 (ukpga/2025/18) · A-S43–46 UK GDPR Arts. 22A–22D · A-S47 Art. 6(1)(ea) · A-S49 Annex 1 · A-S50 Art. 14 · A-S30/31 ONS SRS · A-S33 SAIL. **Part B — City of London** B-S01 NFIB (Wikipedia) · B-S02 City of London Corporation (Wikipedia) · B-S03 Report Fraud privacy (reportfraud.police.uk) · B-S05 FOI (cityoflondon.gov.uk) · B-S06 Remembrancer's Office · B-S07 Business vote · B-S09 "Streets paved with gold" (Bureau of Investigative Journalism, 2012).

Full machine-readable registers, claims matrices, link-checker and ready-to-send FOI drafts are in the working repositories [uk-linkage-investigation/](#) and [city-of-london-investigation/](#).